dence in private actions between individuals for the recovery of money paid upon pretended sales, &c. The 4th section provided for the repayment of money, funded stock, &c., which may have been paid into the treasury, provided it was then remaining *therein, and provided the repayment should be demanded within eight months from that time. The 5th [*91 section prohibited any application to congress, or the general government of the United States, for the extinguishment of the Indian claim; and the 6th section provided for the promulgation of the act. The count then assigned a breach of the covenant in the following words, viz: "And by reason of the passing of the said last-mentioned act, and by virtue thereof, the title which the said Peck had, as aforesaid, in and to the tenements aforesaid, and in and to any part thereof, was constitutionally and legally impaired, and rendered null and void."

The 4th count, after reciting the covenants as in the first, assigned as a breach, "that at the time of passing of the act of the 7th of January 1795, the United States of America were seised in fee-simple of all the tenements aforesaid, and of all the soil thereof, and that, at that time, the State of Georgia was not seised in fee-simple of the tenements aforesaid, or of any part thereof, nor of any part of the soil thereof, subject only to the extinguishment of part of the Indian title thereon."

The defendant pleaded four pleas, viz: 1st plea. As to the breach assigned in the first count, he said, that on the 6th of May 1789, at Augusta, in the state of Georgia, the people of that state, by their delegates, duly authorized and empowered to form, declare, ratify and confirm a constitution for the government of the said state, did form, declare, ratify and conform such constitution, in the words following: [Here was inserted the whole constitution, the 16th section of which declares, that the general assembly shall have power to make all laws and ordinances *which they shall deem necessary and proper for the good of the state, which shall not [*92 be repugnant to this constitution.] The plea then averred, that until and at the ratification and confirmation aforesaid of the said constitution, the people of the said state were seised, among other large parcels of land and tracts of country, of all the tenements described by the said Fletcher in his said first count, and of the soil thereof, in absolute sovereignty, and in fee-simple (subject only to the extinguishment of the Indian title to part thereof); and that upon the confirmation and ratification of the said constitution, and by force thereof, the said state of Georgia became seised in absolute sovereignty, and in fee-simple, of all the tenements aforesaid, with the soil thereof, subject as aforesaid; the same being within the territory and jurisdiction of the said state, and the same state continued so seised in fee-simple, until the said tenements and soil were conveyed, by letters-patent, under the great seal of the said state, and under the signature of George Matthews, Esq., governor thereof, in the manner and form mentioned by the said Fletcher in his said first count. And the said Peck further said, that on the 7th of January 1795, at a session of the general assembly of the said state, duly holden at Augusta, within the same, according to the provisions of the said constitution, the said general assembly, then and there possessing all the powers vested in the legislature of the said state, by virtue of the said constitution, passed the act above mentioned by the said Fletcher in the assignment of the breach aforesaid, which act is in the words following,